

1.

CASE #	CASE NAME	HEARING NAME
CVRI2404430	ALDAMA vs COSTCO WHOLESALE CORPORATION	MOTION TO COMPEL PRODUCTION OF DOCUMENTS REQUESTED AT DEPOSITION

Tentative Ruling:

The plaintiffs' motion to compel production of documents at deposition is granted in part and denied in part. Specifically, it is granted as to all of the described documents that were in the defendant's possession prior to the retention of outside counsel. It is otherwise denied but on the condition that the defendant agrees on the record to abandon affirmative defenses ##11, 16, and 18 and to strike them from the defendant's answer.

The defendant's request for sanctions is denied.

Analysis:

As to responsive documents possessed by the defendant prior to the retention of counsel, the claim that responsive documents are attorney work-product fails. As to those documents, the objections are overruled and the motion is granted. The declaration of Koenig establishes that the remaining documents requested qualify as attorney work-product and are therefore privileged unless the defendant has placed the sufficiency of the investigation at issue. No evidentiary objection has been raised to that declaration. The defendant has represented that it is no longer relying upon affirmative defenses ##11, 16, and 19, but has not sought to amend its answer or formally abandon its reliance upon those defenses. If such an abandonment is made on the record, then the objection shall be sustained and the motion shall be denied. Because the motion is not entirely denied, the defendant's request for sanctions is denied.

2.

CASE #	CASE NAME	HEARING NAME
CVRI2503187	SUGIHARTO vs SOLARIS PAPER, INC.	MOTION TO COMPEL ARBITRATION

Tentative Ruling:

The plaintiff's request for judicial notice is denied. The defendant's motion to compel arbitration is denied.

Analysis:

The documents of which judicial notice is requested are irrelevant to the Court's analysis, and the request is denied for that reason.

The party seeking enforcement of an electronically signed contract may sufficiently authenticate the agreement by producing evidence explaining that the signor had a unique username and password and providing the step-by-step process necessary for signing, as well as affirming that the signature could only have been placed on the document by the employees. (*Espejo v. Southern California Permanente Medical Group* (2016) 246 Cal. App. 4th 1047, 1060.) “A proponent seeking to authenticate an electronic signature must show the electronic signature ‘was the act of the person,’ which could be shown ‘in any manner, including a showing of the efficacy of any security procedure applied to determine the person to which the electronic record or electronic signature was attributable.’” (*Garcia v. Stoneledge Furniture LLC* (2024) 102 Cal. App. 5th 41, 53.) “[T]he burden of authenticating an electronic signature is not great.” (*Ruiz v. Moss Bros. Auto Group, Inc.* (2014) 232 Cal.App.4th 836, 844.)

Here, the defendant relies on the declaration of its Senior HR Manager, Ms. Galindo-Castro. She represents that on October 30, 2020, Plaintiff executed the Arbitration Agreement which was in his personnel file. (Decl. of Galindo-Castro, ¶ 7.) The Arbitration Agreement is not actually signed, although there is a separate document attached indicating that ADP verifies the electronic signature. (Id, Ex. A.) That evidence is insufficient to show that the alleged electronic signature was the act of Plaintiff. Ms. Galindo-Castro states only that personnel documents are generally provided to employees with time to review and execute them, which are then placed in the employee’s personnel file. This is insufficient to establish the veracity of the electronic signature. There is no evidence showing that only Plaintiff could have electronically signed the Arbitration Agreement based on a unique user name and password. There is no evidence that anyone observed Plaintiff signing the Agreement. Nor is there any evidence from ADP as to the method by which the plaintiff’s signature was “verified.” Because Defendant has not established that the Arbitration Agreement was executed by Plaintiff, it has not established the existence of a valid arbitration agreement. Therefore, the motion fails.

Because the motion fails, the Court need not consider whether the defendant waived arbitration or whether the agreement is unconscionable.

3.

CASE #	CASE NAME	HEARING NAME
CVRI2503782	ITRIA VENTURES LLC vs MAINVIEW MULTINATIONAL LLC	MOTION TO SET ASIDE

Tentative Ruling:

The motion of Mainview Multinational, LLC, to set aside the default entered against it is denied.